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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

OAKLAND DIVISION

DENUVO GMBH,

Plaintiff,

v.

VOICES38, an unknown individual or entity, and DOES 1-10,

Defendants.

Case No. 4:26-cv-10423-HSG

***EX PARTE* MOTION FOR EXPEDITED DISCOVERY**

Judge: Haywood S. Gilliam, Jr.

Plaintiff Denuvo GmbH ("Plaintiff" or "Denuvo") hereby moves the Court for leave to take limited discovery in this action prior to the Rule 26(f) conference. Denuvo seeks an order allowing narrowly tailored subpoenas to non-parties Discord Inc., Valve Corporation, and Reddit Inc. to determine the contact information for Defendant voices38, an unknown individual or entity ("Defendant"). This motion is filed concurrently with the Declaration of Ryan C. Morris in Support of Expedited Discovery ("Morris Decl.").

I. INTRODUCTION

Defendant is a computer hacker, or a group of hackers, who has circumvented Denuvo's technological measures that control access to copyrighted works, including video games, in violation of the Digital Millennium Copyright Act ("DMCA"). Defendant goes by the online alias "voices38" and has not only circumvented Denuvo's technological measures, but has disclosed online, including through such sites as Reddit, how to circumvent Denuvo's technological controls for accessing copyrighted works. Because Defendant uses an alias online, Denuvo seeks limited discovery to learn Defendant's identity so that Denuvo can serve Defendant.

II. STATEMENT OF FACTS

Denuvo is a world leader in video game security. Compl. ¶ 2. Among other things, Denuvo develops software programs for video game publishers that provide gaming security, preventing unauthorized access and piracy, and exposing cheats in competitive multiplayer games. *Id.*; *id.* ¶¶ 10, 12. One of Denuvo's security solutions is Denuvo's Anti-Tamper product, which protects video games by reinforcing platform-level digital rights management ("DRM"). *Id.* ¶ 13. DRM manages legal access to digital content, restricting the use of copyrighted works by governing the use, modification, and distribution of copyright works. *Id.* ¶ 14. Denuvo's Anti-Tamper ensures that only legitimate users can access a video game and prevents reverse engineering, debugging, and unauthorized modifications of the video game. *Id.* ¶¶ 15-16. Denuvo has provided its Anti-Tamper product to numerous video game publishers to enable those publishers to protect their copyrighted works. *Id.* ¶ 17.

Defendant is a computer hacker who seeks to bypass or remove DRM for video games, including Denuvo's Anti-Tamper, thereby circumventing the security measures developers and publishers use to prevent unauthorized access, copying, and distribution of video games. Compl. ¶¶ 18, 20. Defendant has bypassed Denuvo's Anti-Tamper for numerous copyrighted video games, removing the very protections that allow copyright owners to restrict who may access their works, and allowing for pirated versions of those copyrighted works to be used and distributed without authorization. *Id.* ¶¶ 23-49. After bypassing Denuvo's Anti-Tamper for a video game, Defendant posted materials and instructions on the internet thereby allowing others to obtain pirated and

otherwise access unauthorized versions of the video game. *Id.* ¶ 63. Indeed, a Reddit page for "voices38" lists the games for which Defendant has bypassed Denuvo's Anti-Tamper with links to materials and instructions for gaining unauthorized access to the video games. *Id.* ¶ 64.

Denuvo has sought to determine the identity and location of Defendant. Denuvo has learned Defendant's username and User ID number on Discord, which is an online platform for voice, video, and text chat. Compl. ¶ 4. Denuvo has also obtained information about accounts associated with Defendant on a digital distribution platform. *Id.* ¶ 5. Denuvo has further uncovered information about certain transactions by Defendant. Morris Decl. ¶¶ 7-10. After filing this lawsuit, Denuvo contacted Discord, Valve Corporation, and Reddit, Inc., requesting information about Defendant. Morris. Decl. ¶ 8. These entities responded that their privacy policies would not allow them to disclose information without compulsory legal process, such as a duly issued subpoena. *Id*. Despite its efforts, therefore, Denuvo has been unable to discover Defendant's identity or address.

Denuvo now seeks leave to conduct limited discovery before the Rule 26(f) conference so that Defendant may be served.

III. ARGUMENT

The Ninth Circuit has instructed that "'where the identity of the alleged defendant[][is] not [] known prior to the filing of a complaint[,] the plaintiff should be given an opportunity through discovery to identify the unknown defendants, unless it is clear that discovery would not uncover the identities, or that the complaint would be dismissed on other grounds.'" *Wakefield v. Thompson*, 177 F.3d 1160, 1163 (9th Cir. 1999) (quoting *Gillespie v. Civiletti*, 629 F.2d 637, 642 (9th Cir. 1980)) (alteration in original). Other courts have reached the same conclusion. *Murphy v. Goord*, 445 F.Supp.2d 261, 266 (W.D.N.Y. 2006); *see also SunLust Pictures, LLC v. Doe*, 2012 WL 975828, at *2 (D. Colo. Mar. 22, 2012). This Court evaluates the following factors when considering motions for expedited discovery to identify an anonymous defendant: (1) whether the plaintiff has identified "the missing party with sufficient specificity such that the Court can determine that defendant is a real personal or entity who could be sued in federal court"; (2) the previous steps the plaintiff has taken to locate the defendant; and (3) whether the plaintiff's suit could withstand a motion to dismiss. *Columbia Ins. Co. v. seescandy.com*, 185 F.R.D. 573, 578-80 (N.D. Cal. 1999).

These factors lead to a single conclusion: the Court should grant Denuvo's request for expedited, limited discovery.

First, Denuvo has identified Defendant with sufficient specificity to determine that Defendant is one or more real persons or entities that can be sued in federal court. Denuvo has identified Defendant as a person or persons operating online as "voices38." Denuvo has determined Defendant's username and User ID on an online voice, video, and text chat platform. Compl. ¶ 4; Morris Decl. ¶ 5. Denuvo has also determined that Defendant is associated with several accounts on a digital distribution platform owned and operated by Valve Corporation. Compl. ¶ 5; Morris Decl. ¶ 6. Moreover, Defendant uses the online alias "voices38" on internet platforms such as Reddit. Compl. ¶¶ 3, 64. Indeed, Reddit pages are dedicated to Defendant's hacking of video games, listing video games that Defendant has hacked, and providing materials and instructions for gaining unauthorized access to video games. *Id.* ¶ 64. There is sufficient information that Defendant is a person or combination of persons or entities that can be sued.

Second, Denuvo has taken numerous steps to locate and identify Defendant. For instance, Denuvo found Defendant's username and User ID on Discord, which is an internet platform for voice, video, and text chatting. Compl. ¶ 4; Morris Decl. ¶ 5. Denuvo has also learned of several accounts or profiles associated with Defendant on the digital distribution platform operated by Valve. Compl. ¶ 5; Morris Decl. ¶ 6. Further, Denuvo has identified certain transactions associated with Defendant, including transactions for cryptocurrencies. Morris Decl. ¶ 7. Denuvo has directly sought information about Defendant from companies such as Discord, Valve Corp., and Reddit, which emphasized that their privacy policies forbad them from disclosing information without compulsory legal process. Morris Decl. ¶ 8.

Finally, Denuvo's Complaint could withstand a motion to dismiss. Federal Rule of Civil Procedure 8(a) requires only "a short and plain statement of the claim showing that the pleader is entitled to relief." Fed. R. Civ. P. 8. This is a "liberal standard," *Fednav Ltd. v. Sterling Int'l*, 572 F.Supp.1268, 1270 (N.D. Cal. 1983), and the requirement of a short and plain statement is designed "to 'give the defendant fair notice of what the … claim is and the grounds upon which it rests.'" *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007). On a motion to dismiss under Rule

12(b)(6), the court accepts "all factual allegations in the complaint as true and construes the pleadings in the light most favorable to the nonmoving party." *Knievel v. ESPN*, 393 F.3d 1068, 1072 (9th Cir. 2005). "To survive a motion to dismiss, a complaint must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). "A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Id.* Detailed factual allegations are not required, *id.*, and Denuvo's Complaint sets forth substantial facts and details supporting its claims.

Denuvo asserts claims under the DMCA for circumventing technological measures that control access to copyrighted works. Denuvo alleges that Defendant has violated Section 1201(a)(1), which provides that "[n]o person shall circumvent a technological measure that effectively controls access to a work protected under this title." 17 U.S.C. § 1201(a)(1). Under the statute, "a technological measure 'effectively controls access to a work' if the measure, in the ordinary course of its operation, requires the application of information, or a process or a treatment, with the authority of the copyright owner, to gain access to the work." *Id.* § 1201(a)(3)(B). And "to 'circumvent a technological measure' means to descramble a scrambled work, to decrypt an encrypted work, or otherwise to avoid, bypass, remove, deactivate, or impair a technological measure, without the authority of the copyright owner." *Id.* § 1201(a)(3)(A).

Denuvo alleges that its Anti-Tamper protects copyrighted video games by reinforcing platform-level DRM, which governs the use, modification, and distribution of copyrighted works and of systems that enforce the policies within devices. Compl. ¶¶ 13-14. As such, Denuvo's Anti-Tamper is a process that ensures only legitimate users can play a video game, thereby controlling access to the copyrighted works. *Id.* ¶ 15. It also prevents reverse engineering, debugging, and unauthorized modifications of video games. *Id.* ¶ 16. Denuvo has provided the Anti-Tamper product to numerous video game publishers, including Sega, Ubisoft, Konami, Electronic Arts, Capcom, Game Science, Sony, 2K Games, Warner Bros. Games, and IO Interactive, which have added Anti-Tamper to their copyrighted works. *Id.* ¶¶ 17, 24-62. Denuvo further alleges that Defendant is a computer hacker who is focused on reverse engineering and hacking video games employing

Denuvo's Anti-Tamper. *Id.* ¶ 20. Defendant has bypassed Denuvo's Anti-Tamper in numerous copyrighted video games, bypassing DRM restrictions in copyrighted works, removing protections that allow copyright owners to restrict who may access their works, and allowing pirated versions of those copyrighted works. *Id.* ¶¶ 22-23. Denuvo has provided numerous instances in which Defendant has bypassed Denuvo's Anti-Tamper and removed protections that restrict unlawful access to video games. *Id.* ¶¶ 24-49.

Denuvo also asserts that Defendant violated Section 1201(a)(2), which states that "[n]o person shall manufacture, import, offer to the public, provide, or otherwise traffic in any technology, product, service, devices, component, or part thereof, that," (1) "is primarily designed or produced for the public of circumventing a technological measure that effectively controls access to a" copyrighted work, (2) "has only limited commercially significant purpose or use other than to circumvent a technological measure that effectively controls access to a" copyrighted work; or (3) "is marketed by that person or another acting in concert with that person with that person's knowledge for use in circumventing a technological measure that effectively controls access to a" copyrighted work. 17 U.S.C. § 1201(a)(2).

Denuvo alleges that after bypassing, removing, or impairing Denuvo's Anti-Tamper for a video game, Defendant then offered materials and instructions online for others to bypass Denuvo's Anti-Tamper. Compl. ¶ 80. In particular, Defendant posted materials and instructions on the internet to facilitate the ability of others to also bypass Denuvo's Anti-Tamper. *Id.* ¶ 63. There is even a Reddit page for "voices38" that lists video games for which Defendant has bypassed Denuvo Anti-Tamper with internet links to materials and instructions for gaining unauthorized access to the games. *Id.* ¶ 64. These listings on the internet have resulted in numerous individuals bypassing Denuvo Anti-Tamper and gaining unauthorized access to games. *Id.* ¶ 65. Further, this offer of materials and instructions has no commercially significant purpose other than to circumvent Denuvo's Anti-Tamper. *Id.* ¶ 81. And Defendant, or those acting in concert with Defendant, market the use of these online materials and instructions to access video games without authorization. *Id.* ¶ 82. For both claims asserted in this case, Denuvo has provided sufficient allegations to withstand a motion to dismiss.

Moreover, this is not a situation in which "it is clear that discovery would not uncover the identit[y]'" of Defendant. *Wakefield*, 177 F.3d at 1163 (quoting *Gillespie v. Civiletti*, 629 F.2d 637, 642 (9th Cir. 1980)). Denuvo has identified specific User IDs and accounts associated with Defendant on several platforms. *See* Compl. ¶¶ 4-5, 64; Morris Decl. ¶¶ 5-7. These platforms likely require registration by the user, including disclosure of certain contact information. Issuing subpoenas to these platforms will likely lead to information about Defendant that Denuvo can use to contact or further uncover information about Defendant. Attached to the Morris Declaration are the subpoenas that Denuvo seeks to issue. *See* Exs. A-C to Morris Decl. As can be seen, those subpoenas are designed to obtain information about Defendant's identity and address to facilitate service.

IV. DENUVO SEEKS LEAVE TO DETERMINE DEFENDANT'S IDENTITY.

Denuvo seeks leave of the Court to serve limited discovery on Discord, Inc., Valve Corporation, and Reddit, Inc. solely to determine Defendant's true identity. Discord is an online platform for voice, video, and text chat. Valve Corporation owns the digital distribution platform Steam. And Reddit is a website platform for users to share user-generated content of various types. Denuvo has determined that Defendant has used each of these services and has accounts with them. Denuvo further understands that registrants for these platforms must provide certain identifying information in order to obtain an account. These services may also have additional information that would lead to Defendant's identity. Denuvo has sought from each of these entities, and each has indicated that their privacy policies forbid disclosure of information without compulsory legal process, such as a duly issued subpoena. Morris Decl. ¶ 9. Accordingly, Denuvo seeks leave of the Court to serve subpoenas on these companies in furtherance of determining Defendant's identity.

V. CONCLUSION

Denuvo has sought to identify Defendant without availing itself of the Court's assistance but has been unsuccessful. For the foregoing reasons, Denuvo respectfully requests the Court grant leave to take expedited discovery prior to the Rule 26(f) conference to identify Defendant.

Dated: October 2, 2026

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